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|    |                                                                            | <p>on the Strip of Land after Plaintiff filed her initial Motion for Preliminary Injunction which has caused an unsafe condition on the Strip of Land.</p> <p>In Opposition, Defendants contend that the Motion must be denied because the alleged trench on the Strip of Land has been filled in and leveled. Defendants submit evidence that as of January 2024, the Strip of Land is smooth, and that their tenants use it to access their property daily. (Le Decl., ¶ 7, Exhibit D.)</p> <p>The Court has reviewed the photographs submitted by Defendants and agree that there is currently no material change in the facts upon which the preliminary injunction was granted. Therefore, modification of the preliminary injunction is not appropriate, and Plaintiff's Motion is DENIED.</p> <p>The Court does not consider Defendants' arguments in Opposition that the preliminary injunction should be dissolved entirely because Plaintiff's Motion only sought to modify the preliminary injunction. "As a general rule, the trial court may consider only the grounds stated in the notice of motion." (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.)</p> <p>Defendants are to give notice.</p> |
| 12 | 30-2022-01279372<br><br>Rucker vs. Harbor View Hills Community Association | <p><b>Motion for Protective Order</b></p> <p>Plaintiff's Motion to Quash Subpoena (filed on 11/9/23) is DENIED as moot.</p> <p>This lawsuit involves Plaintiff's application to build a home on 2700 Harbor View Drive. In this motion, Plaintiff contends the subpoena improperly seeks documents related to Plaintiff's mortgage loans for his existing home at 3100 Harbor View Drive rather than the disputed property at 2700 Harbor View Drive.</p> <p>In opposition, Defendant states this was a clerical error, and it has served a revised subpoena with the correct address. Plaintiff has served a motion to quash the revised subpoena, which is set for hearing on 2/13/24. Therefore, the Court will address the parties' substantive arguments regarding the revised subpoena at the hearing on 2/13/24, making the present motion moot.</p>                                                                                                                                                                                                                                                                                                                                                                  |

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| 13 | 30-2022-01254056<br><br>Justice Meritus LLC<br>vs. Logan | <p><b>Motion for Protective Order</b></p> <p>Defendants Ethan Logan, Moreno Valley Gateway, LLC, MVG Turnpike, LLC, Statewide Ministorage/Barstow, LLC, and Statewide Ministorage/Meniffee, LLC’s Motion for a Protective Order is GRANTED.</p> <p>Pursuant to CCP § 2031.060, “[t]he court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2031.060(b)(5).) This includes orders that: “a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only to specified persons or only in a specified way.” (Ibid.)</p> <p>CCP § 2017.020 provides that: “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person.</p> <p>The burden is on the party seeking the protective order to show “good cause” for whatever order is sought. (<i>Fairmont Ins. Co. v. Sup. Ct.</i> (2000) 22 Cal.4th 245, 255; <i>Stadish v. Super. Ct.</i> (1999) 71 Cal.App.4th 1130, 1145.) “The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order.” (<i>Goodman v. Citizens Life &amp; Cas. Ins. Co.</i> (1967) 253 Cal.App.2d 807, 819.) Proof on the question of good cause is presented through declarations and counter-declarations. (<i>Greyhound Corp. v. Super. Ct.</i> (1961) 56 Cal.2d 355, 389.)</p> <p>The issuance and formulation of protective orders are to a large extent discretionary in evaluating and balancing the interests of the parties and the public when determining whether there is good cause for a protective order and defining the scope of any protective order. (<i>Raymond Handling Concepts Corp. v. Sup. Ct.</i> (1995) 39 Cal.App.4th 584, 588, 591).</p> <p>Defendant Ethan Logan has been previously ordered to produce certain confidential financial by this Court.</p> |
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